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same percentage. The decision was challenged at the HC through a bunch of petitions, mostly filed by the Satnami community—the most prominent and politically powerful SC community in the state. The HC clubbed all the petitions and, in an order passed in September 2022, quashed the 58 per cent reservation, stating that quota exceeding the 50 per cent ceiling set by the Supreme Court was unconstitutional. In 2019, too, the HC had struck down an increased quota plan—it added up to 82 per cent—announced by the then new Congress government, citing a lack of quantifiable population data.

The September order triggered massive protests by tribal groups, who petitioned the state government for help. A blame game began—the BJP accused the Congress government of failing to put up a good legal defence,



while the Congress said the previous BJP government had a weak law. However, the Bhupesh Baghel-led Congress government came out with a robust response. It challenged the HC order at the SC and called a special session of the assembly on December 1 and 2. On the second day, it passed two bills, hiking reservation to 76 per cent. In doing so, it restored the quota for tribes at 32 per cent, marginally increased it for SCs to 13 per cent and hiked reservation for OBCs to 27 per cent. It also added a four per cent quota for Economically Weaker Sections (EWS). The immediate opposition came from general category groups, who took out candle-light marches in some towns. "Normally, reservation is 50 per cent, but Chhattisgarh has 44 per cent forest cover and its economic and social situation is different, warranting the 76 per cent reservation," said CM Baghel, defending the move.

As the reservation amendment bills reached the Raj Bhavan, it hit a block. Governor Uikey has asked the state government 10 questions pertaining to the basis for enhanced reservation. The obvious ones were whether a commission, as mandated by courts, was set up to collect quantifiable data to justify exceeding the 50 per cent quota cap, and if legal opinion from the state's law department was taken on the matter.

"Why did the state government take two months to call a special session of the assembly? And if it was to amend the Act, why did it also appeal in the Supreme Court?" asks BJP MLA Saurabh Singh Sisodia, claiming it was all a show. On the other hand, the Congress is keen to use Uikey's perceived stalling—she is a former politician and BJP member—against its adversary. "What the governor is doing is delaying tactics. The governor has no right to amend even one word. What she should have done is to return the bills with queries," says state Congress spokesperson Sushil Anand Shukla.

IF THE QUANTIFIABLE DATA REPORT SHOWS A FALL IN OBC NUMBERS, IT CAN AFFECT BOTH BJP AND CONGRESS, WHO BANK ON OBCs

While most reserved communities are satisfied with the new bills, given their share in the reservation pie has increased, the SCs are upset with the token one per cent hike, which is still lower than what they had till 2012. On December 18, on the occasion of Ghasidas Jayanti—commemorating Guru Ghasidas, founder of the Satnami community—members protested against the new quota. Most of the SC population is concentrated in the central region of Chhattisgarh, which has the largest share of assembly seats.

Earlier, the Chhattisgarh government had indeed appointed a single-member quantifiable data commission, headed by Justice C.L. Patel, which had submitted its report to the cabinet on November 26. According to sources, the commission's findings indicate that OBC numbers are not as high as claimed. The report, if made public, could impact both the BJP and the Congress, which have been focusing on OBC communities prior to the polls. The BJP has recently appointed Arun Saw, a member of the Sahu OBC community, as state BJP president and Narayan Chandel, also an OBC, as leader of Opposition. CM Baghel continues to be the OBC face of the Congress. The perceived reduction in the share of OBCs in the population means that non-reserved communities, including Brahmins, Thakurs, Kayasthas, Vaishyas, Sikhs, some Christians and some Muslims comprise more than the five per cent claimed by OBC leaders, and are probably in the 15-17 per cent range. It would strengthen the hands of leaders from the general categories in both parties. ■